

1. WHALEN v. VAIL RESORTS, INC., ET AL., 25CV0205**Defendants' Motion for Terminating Sanctions**

On May 1, 2026, defendants Vail Resorts Management Company and Vail Resorts, Inc. (collectively, "defendants") filed a motion for terminating sanctions under the Civil Discovery Act based on plaintiff Chanel Whalen's ("plaintiff")¹ alleged refusal to comply with the court's January 23, 2026, order requiring plaintiff to (1) amend her complaint on or before February 6, 2026, as a result of the court sustaining defendants' demurrer (to the second cause of action only) with leave to amend; (2) serve verified discovery responses within 30 days of the notice of entry of order, as a result of the court granting defendants' motions to compel; and (3) pay defendants monetary sanctions within 30 days of the notice of entry of order, as a result of the court granting defendants' requests for sanctions in their discovery motions.

On July 6, 2026, plaintiff filed a timely opposition. On July 10, 2026, defendants filed a timely reply.

By way of background, on January 23, 2026, the court sustained defendants' demurrer to the second cause of action in plaintiff's original complaint and granted plaintiff leave to amend the second cause of action on or before February 6, 2026. Plaintiff did not file her amended complaint (the second amended complaint) until April 30, 2026. However, plaintiff's failure to file a timely amended complaint is not an abuse of the discovery process and therefore not relevant to the instant motion.

Also on January 23, 2026, the court granted defendants' motions to compel verified discovery responses and, with respect to defendants' motion to deem matters admitted, imposed a monetary sanction of \$500. The court ordered plaintiff to serve her verified responses and pay the monetary sanction within 30 days of the notice of entry of order. Defendants electronically served the notice of entry of order upon plaintiff on

¹ Plaintiff brings this lawsuit as an individual and as the alleged successor-in-interest to the Estate of Wesley Whalen.

January 27, 2026. (Rivera Decl., ¶ 31 & Ex. 13.) Therefore, plaintiff's deadline to comply with the court's order was March 2, 2026 (30 calendar days, extended by two court days for electronic service). As of the date of filing the instant motion for terminating sanctions (May 1, 2026), plaintiff had not served her verified discovery responses or paid the monetary sanction. Plaintiff's counsel declares that plaintiff has since complied. (Guasco Decl., ¶¶ 3, 4.) Further, plaintiff voluntarily paid an additional \$500 for defendants' costs incurred bringing the instant motion for terminating sanctions. (Guasco Decl., ¶ 4.)

Where, as here, a party fails to obey an order compelling a response, "the court may make those orders that are just, including the imposition of an issue sanction, an evidence sanction, or a terminating sanction In lieu of or in addition to this sanction, this court may impose a monetary sanction under Chapter 7 (commencing with Section 2023.010)." (Code Civ. Proc., §§ 2030.290, subd. (c) [interrogatories], 2031.300, subd. (c) [document production].)

Defendant argues that terminating sanctions are appropriate in this case. The court disagrees. " 'Discovery sanctions "should be appropriate to the dereliction, and should not exceed that which is required to protect the interests of the party entitled to but denied discovery." ' [Citation.] If a lesser sanction fails to curb abuse, a greater sanction is warranted: continuing misuses of the discovery process warrant incrementally harsher sanctions until the sanction is reached that will cure the abuse. 'A decision to order terminating sanctions should not be made lightly. But where a violation is willful, preceded by a history of abuse, and the evidence shows that less severe sanctions would not produce compliance with discovery rules, the trial court is justified in imposing the ultimate sanction.' " (*Doppes v. Bentley Motors, Inc.* (2009) 174 Cal.App.4th 967, 992.)

Here, although plaintiff failed to comply with the court's January 23, 2026, order, which is an abuse of the discovery process, the court is unaware of any prior discovery

abuses by plaintiff in this case. Additionally, the court notes that defendants did not request, and the court did not impose, any monetary sanction when it granted defendants' motions to compel (defendants requested a monetary sanction related to their motion to deem matters admitted only). Further, plaintiff served verified discovery responses and paid the monetary sanction prior to this hearing, and also paid an additional \$500 to defendants' counsel for costs in bringing the instant motion.

Under the circumstances, the court finds that terminating sanctions are not justified and therefore defendants' motion is denied.

TENTATIVE RULING # 1: THE MOTION IS DENIED. NO HEARING ON THIS MATTER WILL BE HELD (*LEWIS v. SUPERIOR COURT* (1999) 19 CAL.4TH 1232, 1247), UNLESS A NOTICE OF INTENT TO APPEAR AND REQUEST FOR ORAL ARGUMENT IS TRANSMITTED ELECTRONICALLY THROUGH THE COURT'S WEBSITE OR BY TELEPHONE TO THE COURT AT (530) 573-3042 BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. NOTICE TO ALL PARTIES OF AN INTENT TO APPEAR MUST BE MADE BY TELEPHONE OR IN PERSON. PROOF OF SERVICE OF SAID NOTICE MUST BE FILED PRIOR TO OR AT THE HEARING.